

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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EBONY HILAIRE,

Plaintiff,

-against-

ERIKA MIMS; LAPKEUNG LEE; DANIEL
COMAS; CHRYSTAL GARRETT; and JOHN and
JANE DOE 1 through 10, individually and in their
official capacities (the names John and Jane Doe
being fictitious, as the true names are presently

Defendants.
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1st AMENDED
COMPLAINT AND
JURY DEMAND

Docket No.
1:15-cv-748

ECF CASE

Plaintiff Ebony Hilaire, by his attorney Cary London, of London Indusi, LLP, for his
complaint against Defendants alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff seeks relief through 42 U.S.C. §1983 and 42 U.S. §1988 for the violation of his civil rights protected by Fourth and Fourteenth Amendments of the United States Constitution.

2. The claim arises from a July 3, 2014 incident in which Defendants, acting under color of state law, unlawfully entered Ms. Hilaire's home without a warrant and arrested Ms. Hilaire for no valid reason. Ms. Hilaire spent approximately 24 hours unlawfully in police custody. After multiple court appearances, Ms. Hilaire received an Adjournment in Contemplation of Dismissal on October 8, 2014.

3. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as

well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §1983 and §1988.

5. The jurisdiction of this court is predicated upon 28 U.S.C. §§ 1331 and 1343(a)(3) and (4).

VENUE

6. Venue is laid within the Eastern District of New York in that Defendant City of New York is located within and a substantial part of the events giving rise to the claim occurred within the boundaries of the Eastern District. 28 U.S.C. § 1391 (b) and (c).

PARTIES

7. Plaintiff Ebony Hilaire ("Ms. Hilaire") resided at all times here relevant in Kings County, City and State of New York.

8. Police Officer Erika Mims, Shield No. 4948 ("Mims") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Mims was, at the time relevant herein, a Police Officer under Shield # 4948 of the 71st Precinct. Defendant Mims is sued in her individual capacity.

9. Lieutenant Lapkeung Lee, ("Lee") was, at all times here relevant, a lieutenant employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Lee was, at the time relevant herein, a Lieutenant of the 71st Precinct. Defendant Lee is sued in her individual capacity.

10. Sgt. Daniel Comas, (“Comas”) was, at all times here relevant, a sergeant employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Comas was, at the time relevant herein, a Sergeant under Shield #240 of the 71st Precinct. Defendant Comas is sued in his individual capacity.

11. Police Officer Chrystal Garrett, (“Garrett”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Garrett was, at the time relevant herein, a police officer under Shield #9775 of the 71st Precinct. Defendant Garrett is sued in her individual capacity.

12. At all times relevant Defendants John Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield number of Defendants John Doe 1 through 10.

13. At all times relevant herein, Defendants John Doe 1 through 10 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John Doe 1 through 10 are sued in their individual and official capacities.

14. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

15. On July 3, 2014, at approximately 12:20 p.m., Ms. Hilaire was sitting on a stoop in front of her house located at 378 Montgomery Street in Brooklyn, New York.

16. Ms. Hilaire was not in violation of any law or local ordinance.

17. Ms. Hilaire observed an NYPD vehicle pull up in front of her.

18. Ms. Hilaire observed Defendants run out of the vehicle and down the street.

19. Ms. Hilaire proceeded to walk into her house at 378 Montgomery Street alone.

20. Ms. Hilaire entered her bedroom alone.

21. Approximately 5 minutes later, the Defendants, including Defendant Lee, Mims, Comas and Garrett, unlawfully entered Ms. Hilaire's home without a warrant.

22. No one gave the Defendants permission to enter Ms. Hilaire's home.

23. Defendants, including Lee, Mims, Comas and Garrett, then searched Ms. Hilaire's home without permission or authority.

24. Defendants, including Lee, Mims, Comas and Garrett then entered Ms. Hilaire's bedroom, where Ms. Hilaire was sitting on her bed.

25. Defendants, including Lee, Mims, Comas and Garrett then unlawfully handcuffed Ms. Hilaire and placed her under arrest.

26. At no point did the Defendants observe Ms. Hilaire commit any crime or offense.

27. The Defendants had no probable cause to arrest Ms. Hilaire.

28. Defendants Comas and Garrett were present during the unlawful arrest of Ms. Hilaire.

29. Ms. Hilaire did not violate any law or local ordinance.

30. Ms. Hilaire did not resist arrest.

31. Defendants, including Mims and Lee, conveyed false information to prosecutors in order to have Ms. Hilaire prosecuted for Obstructing Governmental Administration and other related charges.

32. Ms. Hilaire was unlawfully held in police custody for approximately 24 hours and arraigned on those charges.

33. After multiple court appearances, on October 8, 2014, Ms. Hilaire reluctantly

accepted an Adjournment in Contemplation of Dismissal, and admitted no wrongdoing.

34. At all times relevant hereto, Defendants were involved in the decision to arrest Ms. Hilaire without probable cause or failed to intervene in the actions of his fellow officers when he observed them arresting Mr. Marshall without probable cause.

35. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Ms. Hilaire and violate his civil rights.

36. As a direct and proximate result of the acts of Defendants, Ms. Hilaire suffered the following injuries and damages: violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, and loss of liberty.

FIRST CAUSE OF ACTION

Unlawful Entry and Search

42 U.S.C. § 1983 Against Individual Defendants

37. The above paragraphs are here incorporated by reference as though fully set forth.

38. Defendants violated the Fourth and Fourteenth Amendments because they unlawfully entered the home of plaintiff without probable cause, consent or a warrant.

39. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein before alleged.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under

42 U.S.C. § 1983 Against Individual Defendants

40. The above paragraphs are here incorporated by reference as though fully set forth.

41. The Defendants violated the Fourth and Fourteenth Amendments to the U.S.

Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

42. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

43. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

44. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

45. The above paragraphs are here incorporated by reference as though fully set forth.

46. The individual Defendants created false evidence against Plaintiff, to wit, sworn documents and statements alleging Ms. Hilaire made false statement and committed the unlawful acts described above.

47. The individual Defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

48. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual Defendants violated Plaintiff's right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendment of the United States Constitution.

49. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

50. The above paragraphs are here incorporated by reference as though fully set forth.

51. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

52. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

53. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiff in an amount to be determined by a jury for each of Plaintiff's causes of action;
- b) Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- c) Awarding Plaintiff compensatory damages in an amount to be determined by a jury;
- d) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- e) Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: September 20, 2015
Brooklyn New York

Respectfully submitted,

/s/ Cary London, Esq.

Cary London, Esq.

Bar Number: CL2947

Attorney for Ms. Hilaire

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